

is structural, ongoing, and cannot be cured through fee arbitration or continued representation under conditions. As represented in Farrell's facts, HLG holds a deed to the Clayton property obtained through representation of Defendant; has asserted fees of approximately \$1.2 million-an amount equal to the property's appraised value; has tied fee demands to anticipated sale proceeds; and has withheld the deed as leverage in the fee dispute. Assuming these facts are true, they do not demonstrate a communication breakdown but, rather, an irreconcilable conflict of interest under California Rules of Professional Conduct Rule 1.7. As such, HLG's motion to be relieved as counsel must be granted as HLG recognizes their duty to withdraw and as officers of the court have moved to do so. Plaintiffs argue that if this Court denies the motion, Plaintiffs will be compelled to move for disqualification of HLG based on this irreconcilable conflict of interest as to not allow HLG to be relieved would be highly prejudicial to Plaintiffs' interests.

Based on the foregoing arguments, and after reviewing statutory and decisional authorities cited by the parties, along with the Rules of Professional Responsibility, the Court finds that there is good cause to grant this Motion to relieve HLG as counsel for Farrell. The Court acknowledges that the prejudice to Plaintiff is moderate, as there is ample time for Plaintiff to retain trial counsel, or, in the alternative, to represent himself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of HLG to be Relieved as Counsel of Record for Farrell. The makes the following orders:

1. HLG's motion is tentatively **granted**.
2. Farrell and HLG is ordered to appear.

17. 9:00 AM CASE NUMBER: N25-1365

CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS OR, IN THE ALTERNATIVE, MOTION TO DISMISS**

FILED BY: CITY OF SAN RAMON

TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings, or in the alternative, motion to dismiss filed by respondent City of San Ramon. For the reasons set forth, the motion is **granted in part** as to the first and second causes of action of the first amended petition and **denied** as to the third cause of action.

Background

Petitioner Brian Swanson, AIPC, asserts challenges to certain actions by City of San Ramon based on alleged violations of the California Environmental Quality Act, Public Resources Code § 21000, *et seq.* ("CEQA") and the CEQA Guidelines. The actions he challenges were the subject of a Notice of

Determination by the City on June 12, 2025. On July 14, 2025, Plaintiff filed his initial petition for writ of mandate ("Initial Petition") which named as respondents, the mayor of San Ramon, the San Ramon City Council, and the San Ramon Planning Commission, among other entities, but not the City of San Ramon itself.

His operative first amended verified petition for writ of mandate ("FAP") was filed on December 29, 2025. The FAP names the City as the sole named respondent. The City of San Ramon filed a verified answer to the FAP, and on January 28, 2026, the City filed the current motion for judgment on the pleadings, or in the alternative, motion to dismiss based on Petitioner's failure to exhaust his administrative remedies. On December 19, 2025, the City lodged with the Court the Administrative Record ("AR") certified by the City.

Legal Grounds for the City's Motion

In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109 ["Except as otherwise provided in this Title, the provisions of Part II of the Code [Code Civ. Proc. §§ 307-923] are applicable to and constitute the rules of practice in the proceedings mentioned in this Title."].) The notice of motion and motion itself does not cite the legal authority on which it is based, but its supporting memorandum relies on two statutes.

Code of Civil Procedure section 1094 provides a specific basis for a party to make a noticed motion for judgment in connection with a writ proceeding: "If a petition for a writ of mandate filed pursuant to Section 1088.5 presents no triable issue of fact or is based solely on an administrative record, the matter may be determined by the court by noticed motion of any party for a judgment on the peremptory writ." The City contends the FAP is "based solely on an administrative record" such that the FAP may be determined on a noticed motion for judgment under Code of Civil Procedure section 1094.

Respondent City also moves to dismiss the FAP in the alternative, citing Code of Civil Procedure section 583.150. That statute provides: "This chapter does not limit or affect the authority of a court to dismiss an action or impose other sanctions under a rule adopted by the court pursuant to Section 575.1 or by the Judicial Council pursuant to statute, or otherwise under inherent authority of the court."

Analysis

A. Motion for "Judgment on the Pleadings" and Code of Civil Procedure Section 1094

Though the motion is titled as a "motion for judgment on the pleadings" (*see also* Not. of Mot. and Mot. p. 2, ll. 2-7), the motion also states that it is brought based on the administrative record on the ground that the administrative record shows Petitioner failed to exhaust his administrative remedies. (Not. Mot and Mot. p. 2, ll. 8-12.) The notice of motion and motion does not identify the legal authority on which the motion was brought.

The supporting memorandum cites Code of Civil Procedure section 1094. A motion for judgment under that statute is not a "motion for judgment on the pleadings" governed by Code of Civil Procedure section 438 or the common law. Such motions for "judgment on the pleadings" are made on grounds similar to a demurrer after an answer is filed and determined under standards applicable

to a demurrer. (See, e.g., *Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439 [statutory motion]; *Smiley v. Citibank (S.D.), N.A.* (1995) 11 Cal.4th 138, 146 [common law motion].)

A motion for judgment under Code of Civil Procedure section 1094 is different. Rather, "[a] motion for judgment under Code of Civil Procedure section 1094 is the proper (and exclusive) procedural means for seeking a streamlined review of an agency's decision. [Citation omitted.]" (*Rasooly v. City of Oakley* (2018) 29 Cal.App.5th 348, 353.) A motion for judgment under Code of Civil Procedure section 1094 by the terms of the statute explicitly allows the Court to analyze the claims made in the petition with consideration of the administrative record where the petition "presents no triable issue of fact or is based solely on an administrative record." (Code Civ. Proc. § 1094 [emphasis added].)

The City also cites in its initial memorandum the decision *Dunn v. County of Santa Barbara* (2006) 135 Cal. App. 4th 1281. There, the petitioner filed a petition for writ of mandate and subsequently made an alternative motion for summary adjudication under Code of Civil Procedure section 437c or motion for judgment under Code of Civil Procedure section 1094. The Court of Appeal agreed with the trial court that where the petition was made under Code of Civil Procedure section 1094.5 on an administrative record, the motion for judgment under Code of Civil Procedure section 1094 was the proper motion. (Id. at 1286 ["Where, as here, an administrative mandamus proceeding purportedly presents no triable issue of fact or is based solely on the administrative record, the proper procedure is a motion for judgment on the writ pursuant to Code of Civil Procedure section 1094."].) There appears to be no dispute between the parties that the petition is one arising under Code of Civil Procedure section 1094.5 and determined based on the administrative record because a hearing was required, evidence was taken and the agency has discretion in the determination of facts. (*No Oil, Inc. v. City of Los Angeles* (1974) 13 Cal.3d 68, at p. 79, fn. 6, disapproved on other grounds as to *dicta* on traditional mandamus in *Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal. 4th 559, 576.)

B. Lack of Issue Exhaustion as Ground for Judgment for the City

Exhaustion in the context of a CEQA petition encompasses both exhaustion of administrative remedies, based on the petitioner's pursuit of available administrative review or appeals, and exhaustion by having raised before the administrative body the grounds for violation of CEQA asserted in the petition so that the administrative decisionmakers had the opportunity to address the claimed violations before judicial review is invoked. (See *Tahoe Vista Concerned Citizens v. County of Placer* (2000) 81 Cal. App. 4th 577, 588-589, 594 [addressing petitioner's failure to appeal the CEQA issue and only appealing a parking issue in the administrative appeal process, which the Court concluded meant the petitioner had not exhausted its administrative remedies and did not have standing to make a judicial challenge on the CEQA issue]; *Sierra Club v. City of Orange* (2008) 163 Cal. App. 4th 523, 535 ["'No action or proceeding may be brought pursuant to Section 21167 unless the alleged grounds for noncompliance with this division were presented to the public agency orally or in writing by any person during the public comment period provided by this division or prior to the close of the public hearing on the project before the issuance of the notice of determination.' ([Pub. Res. Code] § 21177, subd. (a).) This exhaustion of administrative remedies requirement is jurisdictional. [Citation omitted.],] quoting *Bakersfield Citizens for Local Control v. City of Bakersfield* (2004) 124 Cal.App.4th 1184, 1199].)

" 'The requirement of exhaustion of administrative remedy is founded on the theory that the

administrative tribunal is created by law to adjudicate the issue sought to be presented to the court, and the issue is within its special jurisdiction. If a court allows a suit to go forward prior to a final administrative determination, it will be interfering with the subject matter of another tribunal.' [Citation omitted.] Consequently, the requirement of exhaustion is a jurisdictional prerequisite, not a matter of judicial discretion. [Citation omitted.] " (*Tahoe Vista Concerned Citizens v. County of Placer* (2000) 81 Cal. App. 4th 577, 588-589, 594 [addressing failure to appeal the CEQA issue and only appealing a parking issue in the administrative appeal process, which the Court concluded meant the petitioner did not have standing to make a judicial challenge on the CEQA issue].) The "court independently reviews the administrative record to determine whether the exhaustion of administrative remedies doctrine applies." (*Save Agoura Cornell Knoll v. City of Agoura Hills* (2020) 46 Cal.App.5th 665, 680.)

1. Governing Standards for Issue Exhaustion for CEQA Petitions

Public Resources Code section 21177 codifies the exhaustion rules for CEQA. (*Defend Our Waterfront v. State Lands Com.* (2015) 240 Cal.App.4th 570, 581.) Under the statute, the petitioner must generally have "objected to the approval of the project orally or in writing" before the notice of determination, and "the alleged grounds for noncompliance" with CEQA must have been "presented to the public agency orally or in writing by any person during the public comment period provided by this division or before the close of the public hearing on the project before the issuance of the notice of determination." (Pub. Res. Code § 21177 subd. (a) and (b).) Petitioner bears the burden of proving that he exhausted each issue for which he seeks judicial review by demonstrating the issue was raised at the administrative level. (*Sierra Club v. City of Orange, supra*, 163 Cal. App. 4th at 536.) (*See also Citizens for Responsible Equitable Environmental Development v. City of San Diego* (2011) 196 Cal.App.4th 515, 527; *North Coast Rivers Alliance v. Marin Municipal Water Dist. Bd. of Directors* (2013) 216 Cal.App.4th 614, 624.)

The Petitioner himself does not have to have raised the issue; if the Petitioner participated in the administrative proceedings, the Petitioner can raise grounds for noncompliance raised by other commenters during the public comment period or before the close of the public hearing. (*Bakersfield Citizens for Local Control v. City of Bakersfield* (2004) 124 Cal.App.4th 1184, 1199 ["The petitioner may allege as a ground of noncompliance any objection that was presented by any person or entity during the administrative proceedings. [Citation omitted.]"].) "Although it is true the plaintiff need not have personally raised the issue [citation omitted], the exact issue raised in the lawsuit must have been presented to the administrative agency so that it will have had an opportunity to act and render the litigation unnecessary. [Citation omitted.]" (*Resource Defense Fund v. Local Agency Formation Com.* (1987) 191 Cal.App.3d 886, 894, disapproved on other grounds in *Voices of the Wetlands v. State Water Resources Control Bd.* (2011) 52 Cal.4th 499, 529.) (*See also Sierra Club v. City of Orange, supra*, 163 Cal.App.4th at 535.)

A petitioner meets the issue exhaustion requirement if the grounds for noncompliance with CEQA asserted in the petition were raised by any person during the public comment period or before the close of the public hearing that approved the project. (*California Native Plant Society v. City of Rancho Cordova* (2009) 172 Cal.App.4th 603, 616.) "To satisfy the exhaustion doctrine, an issue must be 'fairly presented' to the agency. [Citation omitted.] Evidence must be presented in a manner that gives the agency the opportunity to respond with countervailing evidence. [Citation omitted.]" (*Citizens for*

Responsible Equitable Environmental Development, *supra*, 196 Cal.App.4th at 527-528 [letters with only "general, unelaborated objections [are] insufficient to satisfy the exhaustion doctrine"].)

The Court in *Sierra Club v. County of Orange*, *supra*, 163 Cal.App.4th 523 reiterated, "To advance the exhaustion doctrine's purpose '[t]he "exact issue" must have been presented to the administrative agency' [Citation omitted.] While 'less specificity is required to preserve an issue for appeal in an administrative proceeding than in a judicial proceeding' because, . . . parties in such proceedings generally are not represented by counsel . . . [citation]' [citation omitted], 'generalized environmental comments at public hearings,' 'relatively . . . bland and general references to environmental matters' [citation omitted], or 'isolated and unelaborated comment[s]' [citation omitted] will not suffice. The same is true for '[g]eneral objections to project approval . . . [Citations.]' [Citation omitted.] '[T]he objections must be sufficiently specific so that the agency has the opportunity to evaluate and respond to them. [Citation.]' [Citation, most internal quotation marks omitted.]" (*Id.* at 535-536.)

Petitioner acknowledges the issue exhaustion requirement of Public Resources Code section 21177. He alleges he submitted comments before the City's June 10, 2025 approvals. (FAP ¶ 16.)

The Court measures the sufficiency and specificity required for pre-approval objections to be made to the City under this case law, as well as three decisions highlighted by the City in its reply brief which illustrate the "exact issue" standard in practice as construed by the Courts. For example, in *Planning & Conservation League v. Castaic Lake Water Agency* (2009) 180 Cal. App. 4th 210, the appellants objected to a portion of the draft EIR regarding the "Monterey Plus settlement agreement as 'piecemeal and startlingly inaccurate,' failing to inform of the potential impact of an applicable agency's review of the project, and that proceeding without waiting for the review outcome "impaired Castaic's assessment of the transfer's environmental effects." (*Id.* at 250.) The Court held that these objections did not apprise the water agency of the appellants' attack raised in the CEQA petition, specifically their attack on "the adequacy of the analytic route drawn in the EIR between the pending DWR Monterey Agreement EIR and the water delivery scenarios. Although appellants' first objection questioned whether a portion of the EIR properly acknowledged the relevance of DWR's review to the Kern-Castaic transfer, the objection sought only an admission that DWR's review 'could affect' the transfer in some manner. As appellants acknowledge, they never specifically objected to the EIR's discussion of the scenarios. Accordingly, the objection did not fairly apprise Castaic that the EIR did not adequately explain the connection." (*Id.* at 250-251 [emphasis added].) The Court held the issue was not exhausted.

In *North Coast Rivers Alliance v. Marin Municipal Water Dist. Bd. of Directors* (2013) 216 Cal.App.4th 614, public agency argued that the petitioner failed to exhaust its administrative remedies as to the consistency of the "Ridgecrest A tank with the Countywide Plan," and the Court of Appeal agreed, reversing the trial court's ruling that found a CEQA violation on that unexhausted ground. Reviewing the comments that specifically mentioned the particular tank, the Court rejected that the comments were specific enough to satisfy the exhaustion requirement for the claims made in the petition, which alleged the EIR "failed to analyze conflicts with policies in the Countywide Plan" regarding a specific cited open space policy, community design policy, and four other specifically identified policy goals. (*Id.* at 631.)

One letter that raised the particular tank location stated that "the tank is 'located on publicly-owned

open space land,' which 'automatically creates a conflict between [the District] and the public agencies which hold the open spaces in public trust for uses that are incompatible with [the District's] proposed use,' " but the Court found the comment "did not apprise the District of any specific inconsistencies with policies or programs in the Countywide Plan. Rather, the letter asked the District to consider alternative sites not designated as open space. The letter also asked the District to revise its mitigation measures so that replacement open space land would be located within Tiburon and that the town be consulted in identifying suitable replacement land." (*Id.* at 632.) In response to this and two other comments stating that "placing the tank at the Ridgecrest A site would impact land designated as open space in the Countywide Plan," the public agency revised its mitigation measures which is what the commenters requested. (*Id.*) (*See also South of Market Community Action Network v. City and County of San Francisco* (2019 33 Cal.App.5th 321, 347 [holding "wind issues" not exhausted; commenters raised "general concerns about the amount of wind generated" by the project, " 'wind tunnel' " effects, and requests for mitigation measures for them, but the "general comments" were insufficient to exhaust the issues raised on appeal in that case, which were (a) inappropriate comparison of the revised project to the initially proposed office and residential scheme and not to existing conditions as required by CEQA, lack of compliance with a San Francisco Planning Code provision requiring the applicant for a project meeting certain wind effect limits to show there could not be an alternative building design to avoid the wind effects, and that the EIR's reliance on "wind baffling" measures in the design development rather than imposing mitigation measures in the EIR as CEQA requires].)

2. The Causes of Action in the FAP

The FAP challenges the City's June 10, 2025 approval of an Updated Climate Action Plan ("Updated CAP") and a CEQA Greenhouse Gas Emissions Thresholds and Guidance Report ("GHG Guidance") which were approved without the City conducting any subsequent or supplemental CEQA review. (FAP ¶ 1, AR 1 Notice of Determination ("NOD").) Petitioner alleges there have been "changed circumstances" related to the assumptions regarding greenhouse gases (GHG) and transportation on which the Environmental Impact Report ("EIR") for the General Plan 2040 were based. (FAP ¶ 4.) He contends the changed circumstances "bear directly on Citywide GHG emissions, vehicle miles traveled ("VMT"), and the feasibility and effectiveness of the mitigation structure referenced" in the General Plan 2040 EIR. (FAP ¶ 4.)

Petitioner expands on the "changed circumstances" he contends have occurred since the General Plan 2040 EIR was certified on December 12, 2023. (FAP ¶ 13.) He alleges "shifts in the City's transportation demand patterns, adjustments to its administrative structure for transportation demand management, and evolving VMT-related baseline conditions that affect how the Updated Cap must be evaluated under CEQA," and changes based on the City's implementation of development strategies shifting downtown from office and commercial to "higher density residential and mixed-use development," adjusting transportation demand management ("TDM") responsibilities, and adopting transportation and parking policy changes. (FAP ¶¶ 15, 31.) (*See also* FAP ¶¶ 20, 32.) Petitioner also alleges the City has not adopted or clearly disclosed or applied "locally tailored CEQA implementing procedures and thresholds of significance – particularly for GHG and transportation/VMT impacts – as required by" various provisions of CEQA. (FAP ¶¶ 6, 33.) He alleges the Updated CAP and GHG Guidance "are being used as de facto thresholds and mitigation guidance

without adequate CEQA review." (FAP ¶ 6.)

Petitioner alleges, among other things, that the Updated CAP targets for GHG reduction, and that the Updated CAP and GHG Guidance define how projects will be evaluated for consistency with state climate goals, how the significance of GHG impacts will be determined, and how the adequacy of mitigation measures and CAP consistency will be assessed. (FAP ¶ 29.) He alleges the City's "local CEQA implementation framework is incomplete and insufficiently transparent" in several respects, including adopting and updating thresholds of significance, the relationship between the Updated CAP and GHG Guidance and the General Plan 2040, and City remedies for challenging the City's CEQA compliance. (FAP ¶ 35.)

a. CEQA Violation for Failure to Perform Subsequent or Supplemental Environmental Review Before Approving Updated CAP and GHG Guidelines – 1st C/A

Petitioner alleges three causes of action. He alleges a violation of CEQA for failure by the City to perform a "subsequent environmental review" and approval of the Updated CAP and GHG Guidelines based on the General Plan 2040 EIR. (FAP 1st C/A, ¶ 45.) He alleges the City violated CEQA in this regard because there were "substantial changes in GHG-reduction strategies, thresholds of significance, and the circumstances under which the GP 2040 EIR's mitigation structure was to be implemented." (FAP ¶ 45.) (*See also* FAP ¶ 46 [alleging changes allegedly made by the Updated CAP and GHG Guidelines, the changed circumstances regarding policy and regulatory actions, development and transportation, and new information that could not have been known when the General Plan 2040 EIR was certified].)

b. CEQA Violation for Inadequate Environmental Analysis of Updated CAP and GHG Based on Material Changes – 2nd C/A

Petitioner alleges a violation of CEQA for failure to proceed in the manner required by law based on alleged inadequate analysis of the Updated CAP and GHG Guidelines pursuant to CEQA because the approval of the Updated CAP and GHG Guidelines was based on assumptions in the General Plan 2040 EIR that he contends have materially changed since the EIR was certified in late December 2023. (FAP 2nd C/A, ¶¶ 51-54.) He alleges the Updated CAP and GHG Guidelines "alter how project- and plan-level GHG impacts will be evaluated, what constitutes a significant impact, and what constitute adequate mitigation strategies." (FAP ¶ 52.) He asserts the City failed to prepare "any CEQA document" describing the changes, evaluating their environmental implications, or explaining how state climate guidance and "VMT practices" have been incorporated and applied. (FAP ¶ 52.)

c. CEQA Violation Because City Did Not Demonstrate Updated CAP and GHG Guidelines Will Implement the Mitigation Monitoring and Reporting Under General Plan 2040 – 3rd C/A

Petitioner alleges a cause of action for violation of CEQA based on inadequate mitigation monitoring and deferral of mitigation. (FAP 3rd C/A, ¶¶ 56-59.) He alleges the Updated CAP and GHG Guidelines are "integrally related" to the General Plan 2040 EIR mitigation framework, but the City has not "clearly identified" how the measures and thresholds will be enforced, the performance standards that will be used, and the mitigation monitoring which will ensure the General Plan 2040 EIR GHG

reductions are achieved, the effect of which is "unlawful deferral of mitigation and failure to adopt enforceable" mitigation monitoring mechanisms. (FAP ¶¶ 57, 58.)

3. FAP Claims Compared to Administrative Record of Objections to Approval of Updated CAP and GHG Guidelines

Bearing in mind that Petitioner bears the burden of proving exhaustion, Petitioner's opposition cites only to his May 19, 2025 written comments to the City on the Updated CAP and GHG Guidelines as proof of exhaustion, comments which were noted in the transcript of the hearing included in the record when the City Council approved the Updated CAP and GHG Guidelines. (Opp. p. 6, ll. 133-139; AR 4433-4441 [Swanson May 19, 2025 email]; AR 4339.) Swanson's May 19, 2025 cover email attaches a five-page Exhibit A "Detailed Itemized Commentary on Plan-by-Plan Contradictions with San Ramon's Draft Climate Action Plan" ("Commentary"). The Court will analyze Swanson's May 19, 2025 email and the Commentary in relation to the claims pled in the FAP.

a. May 19, 2025 Cover Email

In the May 19, 2025 cover email, Swanson states under the heading, "Rebuilding Planning Integrity or Risking Fiscal and Legal Collapse," that "San Ramon's CAP presents itself as a credible strategy for climate mitigation. Yet it is built on unreliable transit assumptions, unenforced TDM structures, and fragmented capital priorities. It is not a plan, it is marketing. [¶] The systemic failure to align budget, land use, transit planning, housing policy, and institutional accountability renders it legally questionable, fiscally vulnerable, and operationally hollow. [¶] Until the City prepares and adopts a Transportation Master Plan, commits to implementing already adopted planning documents, and restores public-facing accountability structures, its CAP cannot be considered a serious policy instrument. [¶] These comments, therefore, function not as feedback but as a formal warning and foundation for further legal and administrative scrutiny." (AR 4435-4436.) Nothing in the May 19, 2025 cover email mentions any changed circumstances mandating subsequent or supplemental review under CEQA in order for the City to approve the Updated CAP and GHG Guidelines. CEQA is not mentioned in the email.

b. Introduction in the Commentary

The Commentary contains the only express references to CEQA. The introductory paragraph of that document explains the document provides "detailed, plan-by-plan analysis of contradictions, omissions, and failures to implement commitments stated in previous City planning documents. The intent is to show not just inconsistencies in strategy, but the complete lack of execution capacity that renders the CAP an aspirational, nonbinding marketing document—not a functional blueprint." (AR 4437 [emphasis added].) The document does not indicate it is intended to demonstrate why subsequent or supplemental environmental review of the Updated CAP or GHG Guidelines is required under CEQA, nor is there any reference to "changed circumstances" or "material changes" warranting additional CEQA environmental analysis prior to the City's approval of the Updated CAP or GHG Guidelines.

Nothing in the statement that there are "contradictions between the CAP" and the City's previously adopted plans (AR 4437) fairly apprises the City that subsequent or supplemental environmental review was necessary under CEQA or that there were material changes in circumstances that required

subsequent or supplemental environmental review under CEQA, as Petitioner alleges in his first cause of action. The broad statement that there are "contradictions" between the Updated CAP and previously approved plans also does not alert the City to Petitioner's specific contentions in his second cause of action, namely that (a) the City's approval of the Updated CAP and GHG Guidelines which rely on the General Plan 2040 EIR do not "adequately analyze or disclose the . . . environmental consequences under current conditions"; or (b) the City was required to prepare a CEQA document with components described in FAP ¶ 52.

The Commentary does not apprise the City of Swanson's claim that the City had to prepare a new environmental document (a) describing how the Updated CAP and GHG Guidelines alter how GHG impacts will be evaluated, (b) evaluating the "environmental implications [of the alterations] using an accurate and stable baseline; or (c) explaining how San Ramon is incorporating and applying "new State-level climate guidance and VMT practices." (FAP ¶ 52.) The only reference to State-level agencies is in Swanson's May 19, 2025 cover email under the heading "Contradictory Use of Federal, State, and Regional Grant Funding," which focuses on use of funds, not state climate guidance of VMT practices. (AR 4435 [emphasis added].) The statements in the May 19, 2025 cover email and introduction in the Swanson Commentary also do not apprise the City that he contends the CAP Update is supplying a mitigation measure under the General Plan 2040 EIR that is inadequate or impermissibly deferring mitigation provided under that EIR as alleged in his third cause of action.

c. Item 2 - General Plan 2040 EIR Comments

In Item 2, "San Ramon General Plan 2040 Final EIR vs. CAP Policy Commitments," Petitioner asserts that the CAP "fails to align" with multiple mandatory mitigation measures included in the General Plan 2040 EIR. The Swanson Commentary cites three contradictions with the mandatory mitigation measures: (1) Mitigation Measure TRANS-2c in the EIR, which Petitioner contends required the City to prepare a Multimodal Transportation Plan, which had not been prepared, even though the Updated CAP "refers to multimodal infrastructure as foundational"; (2) the EIR includes a commitment to reducing VMT, but he contends another policy enacted by the City (FAR reductions, lower density residential development) violates that commitment; and (3) the Updated CAP shows a 14% transit mode share by 2030, which Petitioner contends conflicts with the General Plan 2040 EIR data and assumptions based on "significantly lower modal expectations" without any indication the figures were "reconciled or updated." (AR 4438.) He contends the Updated CAP "builds its emissions-reduction claims on transit, VMT, and density policies" that conflict with the EIR mitigation. (AR 4438.)

While the comments indicate Swanson believes the Updated CAP and GHG Guidelines conflict with or do not align with the General Plan 2040 EIR, nothing in these comments raises any need for subsequent or additional environmental review under CEQA before the Updated CAP or GHG Guidelines can be approved, or indicate that there have been substantial changes in circumstances from when the EIR was adopted, or state that any "new information of substantial importance" exists that was not available when the EIR was certified that would warrant additional environmental review before the Updated CAP and GHG Guidelines are approved. (FAP 1st C/A ¶¶ 45, 46.) Petitioner does not assert a CEQA violation based on inadequate analysis under CEQA relating to the approval of the Updated CAP and GHG Guidelines because the General Plan 2040 EIR "assumptions regarding transportation demand, mode sharing - and their role in mitigating GHG impacts - have materially

changed since the EIR was certified." (FAP 2nd C/A, ¶¶ 51, 53.)

The comments, however, address the claim Petitioner makes in his third cause of action. The statement in Item 2 specifically cites to one of the mitigation measures provided for in the EIR that had not been prepared but which he contends is "foundational" to the Updated CAP, and another part of the Item 2 comment indicates that the EIR had "significantly lower modal expectations" than that in the Updated CAP. If the CAP Update is supposed to provide Mitigation Measure TRANS-2c for the GHG emission impacts of the General Plan 2040, a fair interpretation of these comments is that the CAP Updated does not fulfill that purpose. A fair interpretation of the third cause of action is that Petitioner contends the Updated CAP and the GHG Guidelines do not fulfill the mitigation monitoring required under the General Plan 2040 EIR. (FAP 3rd C/A ¶¶ 56-58.)

d. Items 3, 5, 7 and 8 – CityWalk Plan, Floor Area Ratio Reductions, and Housing Comments

Item 3 "CityWalk Master Plan EIR vs. CAP Mode Shift and Transit Objectives" states that the CAP Update references transit hubs "as future assets to achieve mode shift. [¶] However, no transit hubs have been built. The EIR's assumptions regarding trip reduction, mode shift, and VMT reduction rely on non-existent infrastructure and services." (AR 4438.) The Commentary continues, "microtransit service is not integrated into CityWalk planning," County Connection service has "no new routes or service level increases despite population and employment growth assumptions," and that the City's approved reductions in development intensity "contradict the EIR's analyzed scenario." (AR 4438-4439.)

Item 5 "San Ramon Bicycle Master Plan vs. CAP Implementation Claims" asserts that the CAP Update relies on the City's Master Bicycle Plan but implementation of that plan "remains stagnant or in conflict with capital priorities." (AR 4439.) Item 7 "Floor Area Ratio (FAR) Reductions vs. CAP Density, TOD, and GHG Goals" asserts that the City Council's approval of floor area ratio reductions at a prior meeting "directly contradicts the CAP's stated reliance on increased development intensity to support walking, transit use, and GHG reduction," and that "[t]his is not a theoretical contradiction—it's an enacted policy reversal that directly undermines the CAP's modeling, goals, and claims." (AR 4439.)

In Item 8 "Affordable Housing and Regional Housing Needs Allocation (RHNA) vs. CAP Equity and VMT Strategies," Swanson argues that the CAP Update "claims to address climate equity through strategies that expand affordable housing near jobs and services to reduce VMT and allow low-income residents to live close to where they work," but the City's housing policies have undermined the connection between housing and VMT reduction. (AR 4440-4441.)

There is no mention in these Items that subsequent or supplemental environmental review of the Updated CAP or GHG Guidelines is required under CEQA, nor is there any reference to changed circumstances or material changes warranting additional CEQA environmental review for the City's approval of the Updated CAP or GHG Guidelines. They are insufficient to show exhaustion of the issues alleged in the first and second causes of action.

These portions of the Commentary, however, do appear to raise issues similar to those alleged in Petitioner's third cause of action based on the CAP Update not meeting the General Plan EIR's mitigation monitoring or resulting in the deferral of mitigation required in the EIR that was to be

provided through the Updated CAP.

e. Item 6 - Treatment of CEQA Transportation and Mitigation Measures

Swanson cites the title of Item 6 in the Commentary as demonstrating exhaustion for all his claims, apparently because the title includes the term "CEQA." (AR 4439-4440.) In Item 6, "CEQA Transportation and Land Use Mitigation Measures Ignored," Petitioner asserts that multiple EIRs, including the General Plan 2040 EIR, require mitigation measures by which the City is required to "[m]onitor transportation impacts, VMT, and transit mode shares," "[r]equire project-level TDM programs; and [a]pply consistency checks against General Plan assumptions." (AR 4439-4440.) Petitioner continues, "Since the City dissolved its TDM Advisory Committee and lost staff capacity, these mitigations are no longer being enforced. Projects are approved without consistency findings or active transportation monitoring. The CAP never acknowledges this breakdown, despite its reliance on the same mitigations to justify its emissions reduction strategy." (AR 4440.)

The generic statement that "projects" are being approved without consistency findings or monitoring and that the Updated CAP does not acknowledge this lack of enforcement does not raise or reasonably apprise the City of the claims Petitioner now makes that the City violated CEQA in approving the Updated CAP and GHG Guidelines without performing subsequent or supplemental environmental review under CEQA, as alleged in Petitioner's first cause of action. Nothing in Item 6 raises issues or appraises the City of any claim the Updated CAP or GHG Guidelines proposed "substantial changes" from the General Plan 2040 EIR, that there were "substantial changes" of circumstances necessitating subsequent or supplemental environmental review under CEQA, or that there was "new information" requiring such subsequent or supplemental CEQA environmental review, as alleged in the first cause of action.

Similarly, Petitioner's comments in Item 6 did not fairly apprise the City of the issues and claims Petitioner is making in the second cause of action of the FAP. Petitioner's position that the mitigations in the General Plan 2040 EIR are not being enforced, or that "projects" generally are being approved without transportation monitoring did not apprise the City of Petitioner's claim that the General Plan 2040 EIR "assumptions regarding transportation demand, mode share, and the timing and content of the CAP/GHG-threshold update – and their role in mitigating GHG impacts – have materially changed since the EIR was certified," such that subsequent or supplemental environmental review under CEQA was required before the Updated CAP or GHG Guidelines could be approved. (FAP ¶ 51.) Petitioner's comments in Item 6 of the Commentary are not sufficient to apprise the City of what Petitioner is now claiming in the second cause of action of the FAP, namely that the Updated CAP and GHG Guidance allegedly "alter" either how project or plan GHG impacts will be evaluated, alter "what constitutes a significant impact" or alter what is considered adequate mitigation such that a "new CEQA document" was required. (FAP ¶ 52.)

A reasonable interpretation of these comments is a complaint that the City is not adequately enforcing the EIR's mitigation measures in these specific respects. In that regard, they raise the claim made in Petitioner's third cause of action that the Updated CAP does not provide the mitigation measures required under the General Plan 2040 EIR, or that the Updated CAP and GHG Guidelines operate to impermissibly defer mitigation required under the General Plan 2040 EIR. (FAP ¶¶ 57, 58.)

4. Conclusion as to Exhaustion of Issues

Petitioner failed to exhaust the issues raised in his first and second causes of action alleging CEQA violations. Petitioner's comments did, however, raise the failure of the proposed Updated CAP and GHG Guidelines to constitute adequate mitigation measures or to adequately implement required mitigation measures provided in the General Plan 2040 EIR, as alleged in the third cause of action. (*Compare* FAP ¶¶ 23, 24, 28, 29, 57, 58 to Commentary Items 2, 3, 5, 6, 7, and 8.)

C. Request for Hearing

Public Resources Code section 21167.4 requires a petitioner in a CEQA proceeding to file a request for hearing and serve the request within time deadlines specified in the statute. It provides in relevant part: that "[i]n any action or proceeding alleging noncompliance with this division, the petitioner shall request a hearing within 90 days from the date of filing the petition or shall be subject to dismissal on the court's own motion or on the motion of any party interested in the action or proceeding." (Pub. Res. Code § 21167.4(a).) When a party fails to comply with the deadline for filing the request for a hearing under the statute, dismissal of the proceeding is mandatory. (*Nacimiento Regional Water Management Advisory Com. v. Monterey County Water Advisory Board* (2004) 122 Cal.App.4th 961, 966.) A court may, however, grant relief from failure to make a timely request pursuant to Code of Civil Procedure section 473(b). (*Miller v. City of Hermosa Beach* (1993) 13 Cal.App.4th 1118, 1136; *Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal. App. 4th 1116, 1131-1135 [citing *Miller*, and holding an attorney's clerical calendaring error which resulted in the request being filed one week late was excusable neglect, the kind of mistake a client might make].)

In the *Nacimiento* decision, the Court held that the mandatory relief provision of Code of Civil Procedure section 473(b) where an attorney admits fault, specifically *inexcusable* neglect, does not apply to Public Resources Code section 21167.4. (*Nacimiento, supra*, 122 Cal.App.4th at 967-969.) In contrast, courts have held that the discretionary relief provision of Code of Civil Procedure section 473(b) where surprise, inadvertence, mistake, or excusable neglect is shown can provide relief from the failure to timely file the request for hearing. (*Miller, supra*, 13 Cal.App.4th at 1136; *Comunidad, supra*, 219 Cal.App.4th at 1131-1135.) Indeed, the Court in *Comunidad* reversed the trial court and held that it abused its discretion in not granting relief under Code of Civil Procedure section 473(b).

Here, on July 25, 2025, Petitioner filed an ex parte application which included a request that the Court set a hearing on the merits with a proposed briefing schedule and proposed hearing date for the merits hearing. (7/25/2025 Ex Parte Application for Order Setting CEQA Briefing Schedule and Hearing Date (Public Resources Code §§ 21167.4, 21167.6; Code Civ. Proc. § 1062.3(a); Cal. Rules of Court, rules 3.1200 et seq.).) The ex parte application was filed 11 days after the petition was filed. It explicitly cited Public Resources Code section 21167.4 as a basis for the application, and Petitioner explicitly stated that he "requests the Court to explicitly adopt the following CEQA litigation schedule clearly aligned with statutory mandates and procedural requirements: . . . CEQA Writ Hearing on Merits: January 13, 2026, at 9:00 a.m. (Department 39)." (7/25/2025 Ex Parte App. p. 4.) The Court denied the ex parte application but set a status conference for September 17, 2025 instead. (7/25/2025 Order Den. Ex Parte.) The procedure followed by Petitioner appears to be substantially in conformity with the Court's Local Civil Rule 3.46(1)(B) in effect as of July 1, 2025.

The City argues the written, ex parte application requesting that the Court set a hearing on the merits of the petition consistent with the time deadlines under CEQA, filed by Petitioner within less than 90 days after the petition was filed, is not a "request for hearing." The title of the ex parte application of Petitioner's application stated the relief included "setting CEQA . . . hearing date." (7/25/2025 Ex Parte App.) To the extent the City's position is that the written ex parte application for the Court set the CEQA merits hearing did not bear the title "request for hearing," the Court rejects that the ex parte application requesting a merits hearing did not meet the requirement of Public Resources Code section 21167.4(a). While the case law indicates that strict compliance with the time deadline for filing a written request for a hearing is required, the City has cited no authority for the proposition that any specific "magic" words are required, and that the written pleading asking the Court set a CEQA merits hearing can only satisfy the statute if titled "request for hearing." Here, Petitioner's ex parte application arguably includes both the request for hearing and an application to set the hearing and was clearly filed within 90 days after the petition. (Pub. Res. Code §§ 21167.4(a) and (c).)

D. Failure to Name City Rather Than City Council and Planning Commission in Petition and Untimely Amendment to Name City

Public Resources Code section 21167 provides in part, "An action or proceeding alleging that a public agency has improperly determined whether a project may have a significant effect on the environment shall be commenced within 30 days from the date of the filing of the notice required by subdivision (a) of Section 21108 or subdivision (a) of Section 21152." (Pub. Res. Code § 21167(b).) (*See also* Pub. Res. Code § 21167(e) ["An action or proceeding alleging that another act or omission of a public agency does not comply with this division shall be commenced within 30 days from the date of the filing of the notice required by subdivision (a) of Section 21108 or subdivision (a) of Section 21152."].)

The City also argues that Petitioner failed to comply with Public Resources Code section 21167.5 which provides, "Proof of prior service by mail upon the public agency carrying out or approving the project of a written notice of the commencement of any action or proceeding described in Section 21167 identifying the project shall be filed concurrently with the initial pleading in such action or proceeding."

There is no dispute that Petitioner timely filed a petition. Petitioner does not contest that he did not mail a copy of the petition concurrently with its filing but instead personally served the City Council and City Planning Commission. There also can be no dispute that in December 2025, Petitioner filed an amended petition that names as the sole respondent the City of San Ramon, and that the FAP was the first pleading that specifically identified "City of San Ramon" as the respondent.

The effect of such an amended pleading under general rules of civil procedure is to supersede and render inoperable the original pleading. "An 'amended' complaint supersedes all prior complaints. . . . The original ceases to 'perform any function as a pleading.'" [Citation omitted.] (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215 [quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884].) The Court does not reach the City's arguments regarding necessary and indispensable parties under Code of Civil Procedure section 389, because the filing of the FAP eliminated the original petition, and eliminated the City Council and City Planning Commission as parties to the action as the FAP does not name either as respondent. Those parties were effectively dismissed as a result of the

filing of the FAP. Even if the City Council and City Planning Commission were proper "necessary" parties under Code of Civil Procedure section 389 whose naming in the petition may or may not have been sufficient to allow the Court to proceed without the City itself, the FAP did not merely add the City; the FAP in effect substituted the City for the City Council and City Planning Commission.

The determinative issue is whether Petitioner naming the "City of San Ramon City Council" and "City of San Ramon Planning Commission," and filing an amended petition in December 2025 changing the respondent to "City of San Ramon" was merely the correction of a misnomer, or a fatal defect in the original petition which did not name and serve the "City of San Ramon" as lead agency that could not be corrected by filing the FAP months after the deadlines under Public Resources Code section 21167.

The City contends that naming the City Council and City Planning Commission and then naming the City itself in the FAP is not merely a correction of a misnomer because the City is a distinct legal entity. Regarding the misnomer issue, both parties cite and rely on *Hawkins v. Pacific Coast Bldg. Products, Inc.* (2004) 124 Cal. App. 4th 1497. The Court explained that a party may amend a pleading under Code of Civil Procedure section 473 "by correcting a mistake in the name of a party, or a mistake in any other respect" (Code Civ. Proc. § 473(a).) The Court in *Hawkins* explained the general rule that adding a new defendant does not relate back to the original complaint, and the statute of limitations as to the new defendant is applied based on the date that defendant is added. (*Id.* at 1503.) However, the "general rule" is subject to an exception "where an amendment does not add a 'new' defendant, but simply corrects a misnomer by which an 'old' defendant was sued." (*Id.*)

The Court examined the relevant analysis for whether the amendment should be considered as merely correcting a misnomer: "Whether a plaintiff may amend the complaint to change a party's description or characterization 'after the statute of limitations has run depends on whether the misdescription or mischaracterization is merely a misnomer or defect in the description or characterization, or whether it is a substitution or entire change of parties. In the former case an amendment will be allowed; in the latter, it will not be allowed.' [Citations omitted.] Further, as 'Witkin has observed, "the allowance of amendment and relation back to avoid the statute of limitations does not depend on whether the parties are technically or substantially changed; rather the inquiry is as to whether the nature of the action is substantially changed." ' [Citation omitted.]" (*Id.* at 1504 [emphasis added].)

Applying the misnomer standards in that case where the plaintiff named the defendant by its fictitious business name rather than its legal name, the Court stated: "Allowing *Hawkins* to substitute the correct name for his original misdescription of the only named defendant neither changes the nature of the action nor represents an 'entire change of parties.' [Citation omitted.] *Hawkins* was at all times attempting to sue a single entity, his former employer of three years, for wrongful termination. . . . [¶] In our view, *Hawkins* 'committed an excusable mistake attributable to . . . the use of fictitious names' [citation omitted]." (*Id.* at 1505 [holding relation back doctrine should have been applied and demurrer overruled].)

Examples of decisions in which the proposed amendment was allowed as a misnomer include *Mayberry v. Coca Cola Bottling Co.* (1966) 244 Cal.App.2d 350, cited by the City, in which the plaintiff sued "Coca Cola Bottling Company of Sacramento, a partnership" but sought to amend when the plaintiff learned at trial the correct name and capacity of the defendant was "Coca Cola Bottling

Company of Sacramento, Ltd." which was a separate corporation, though the entities had a business relationship and the partnership and corporation shared three senior officers. (*Id.* at 351.) The Court of Appeal upheld the amendment based on the fact there was some substantial identity between the two defendants, the plaintiff showed excusable mistake, and there was an awareness by the defendant of the true tortfeasor that the claims were being asserted against it. (*Id.* at 354.) The Court finds these factors present here and support allowing the amendment. (*See also Carr v. Barnabey's Hotel Corp.* (1994) 23 Cal. App. 4th 14, 20-23 [citing the *Mayberry* decision, finding allowing an amendment of verdict after trial and deeming it to relate back was proper in an employment discrimination action, where the plaintiff employee could have discovered the correct name of her employer to sue from her W-2 forms (Peppercorn, Ltd., the true employer), but named only Barnabey's Hotel Corporation which had ceased doing business years before, with Peppercorn doing business as Barnaby's Hotel].)

The City also cites *Thompson v. Palmer Corp.* (1956) 138 Cal.App.2d 387 as an illustration of a case in which amendment was not allowed. There, the Court of Appeal upheld the dismissal of a corporation based on the statute of limitations, concluding the misnomer doctrine did not apply. In that case, the plaintiff sued four individuals by name "doing business as Bob 'N Del," as well as Palmer Corporation as defendants, and alleged the individuals were at all times "associated together as general partners and doing business under the fictitious name and style Bob 'N Del." More than a year after the accident, the plaintiff tried amend the complaint to name "Bob 'N Del, a corporation." (*Id.* at 389.) The Court found the dismissal proper because "'Bob 'N Del' was not designated as a party defendant in the original complaint. It was not designated as a partnership, as urged by plaintiffs. If it had been designated as a party defendant and had been described as a partnership, we would have a different question. The original complaint designated R. C. Tucker, Jr., D. D. Rohrbaugh, R. C. Tucker, Sr., David Ritchie, and Jack Alber as individuals doing business as Bob 'N Del. There was no misnomer or mistake in the name of a party. The only misdescription or mischaracterization was in describing the individuals as 'doing business as Bob 'N Del.' " (*Id.* at 396.)

The Court finds this case to be more like *Hawkins*, *Mayberry*, and *Carr* than *Thompson*. The original petition alleged the role the City Council played in approving the Updated CAP and GHG Guidelines being challenged in the petition. The name City of San Ramon was in the name of the caption qualified by "City Council" and "Planning Commission," the agents of the City's government that approved the Updated CAP and GHG Guidelines on behalf of the City. The Court finds allowance of the amendment as a misnomer under those decisions is proper under the circumstances.

18. 9:00 AM CASE NUMBER: N25-1793
CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. CALIFORNIA OCCUPATIONAL SAFETY AND HEALTH APPEALS BOARD
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: ROBERT D. AYERS
FILED BY: DRILL TECH DRILLING & SHORING, INC.
TENTATIVE RULING:
Summary